

Paint Politics

Art as Democracy in the Context of “Wayward Lives, Beautiful Experiments”

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In the creative tradition lies a history of past and present, painted, sung, written, and composed. Fine brushstrokes hang along the elite, established halls of the museum, murals are sprayed upon the brick walls of city streets, and melodies of sorrow, joy, anger, and grief ring out in the opera house and the nightclub. Saidiya Hartman's "Wayward Lives, Beautiful Experiments" presents countless narratives detailing the lives of young Black American women, some finding refuge in artistic environments, and others being refused access as they are censored and arrested. The arts have long acted as a mouthpiece through which ordinary people can find opportunity and representation. Democracy, a system of government wherein all individuals possess equal power and agency in decision making¹, is realized as artistic creations grant the private self a public voice, one which can speak to and against the laws, norms, and injustices that govern one's life.

The illicit and the distinguished, the galvanizing, the shocking, and the beautiful combine to tell perpetual stories and provide sanctuary through the ultimate medium of democracy: *art*. Historically, art has been championed as a means of challenging authoritarianism and bolstering individual representation. Still, representation is often threatened, particularly within marginalized groups, demonstrating the undemocratic nature of denying people art. Through examining the ways in which art has been denied, whether through censorship, legal means, or lack of funding, one can discern its inherent capacity for expression, discourse, and democracy.

The Radical, Wonderful Refuge of Art

Behind the door of a Harlem tenement, a song begins, the notes coalescing into a familiar tune. The audience and the performer are not clearly distinguishable, as one body blends with the next, dancing and laughing into dizzy, melodious circles. The day had been long and hard, cold

¹ Merriam-Webster Dictionary, "Democracy."

and laborious, unsympathetic to the dreams of the Black men and women milling about the city streets. Now, however, it was night, and the same men and women came alive in all the noise, sweat, and joy of the buffet flat.

In the buffet flat, the roles the crowd adhered to outside the door no longer mattered. This was not a world of heteronormativity, where men were men and women were women, and the two went solely together. This was a world of boundless possibilities, where relationships were rearranged to accommodate all styles of being. In Black queer places, both identity and art were given room to flourish. Notably, the queerness of artistic spaces was not relegated to just buffet flats. It was also found in the cabaret, the chorus, and even a tenement hallway. In all places, though, queerness particularly thrived alongside artistic expression.

Performers were wholly performers, unbound by the norms of society beyond the stage. They dressed, moved, and loved how they pleased. And they were not just a subculture; they were crucial to forming Black queer women's social networks. Black performers, the majority of them "lady lovers," helped create the communities that granted young Black women escape in Northern cities subsequent to the Great Migration (a period when Black Americans moved Northward from the American South.)² One such performer was Gladys Bentley, a blues singer. Though they were born a woman, they rejected that categorization. Instead, they became something of an androgynous sex symbol for Black and white audiences alike. Dressed in impressive suits, layers of velvet and wool, completed by a smooth, tall top hat, Bentley strutted confidently through the cabaret. Physically, their embodied sureness, their unwavering sense of security clashed with the radical precarity of the performance. They flirted with the women in the

² Woolner, "“Never No Wells of Lonelinesses...””

audience, made jokes about “sissies” and “bull daggers,” and invited experimentation. It was provocative, and it was extraordinary.³

Artists like Bentley were trailblazers for queer expression, carving out spaces for subversive, radical art—and people—to prosper. The Black queer art world was unconstrained by expectations. It welcomed those who sought novelty, those who sought adventure, and those who sought a way to embrace all that they were. And in its unrestraint, it gave representation and voice to those who found themselves deviating from traditional ways of life. Many young Black women in the early 20th century were tied to lives that expected servitude and marriage. Post-emancipation, the North became especially reliant on the continuation of Black girls’ labor, in ways that forced them to adhere to these standards and essentially become invisible to evade legal persecution.⁴

The arts offered an alternative. Art is the medium of the disempowered. Artistic communities form out of necessity, not the desire for entertainment or commodities. Persistent relocation and oppression of Black people in America led to both intentional and unintentional erasure of Black identities and archives, and, in turn, art in the early 20th century became a “powerful agent for generating individual as well as community self-understanding.”⁵

The theater, cabaret, and other outlets for performance were key communities in which Black women could find a way out. Of course, they were centers for entertainment, but under that exterior was a far deeper meaning for many. In the dimmed house of the theater, a young woman watched hope unfurl in the sweet songs and sway of the chorus line, overtaken by “this rush of sensation, by the awakening of perception...”⁶ The freedom offered by the theater was

³ Hartman, “Wayward Lives, Beautiful Experiments” p. 197-199

⁴ Webster, “The History of Black Girls...”

⁵ Kashaka, “The Role of Art...”

⁶ Hartman, “Wayward Lives, Beautiful Experiments” p. 302

unfamiliar, yet entrancing for someone with no other means of escaping the oppression that dominated daily life. Yet this freedom was not absolute, meaning it wasn't a total rejection of community or identity. On the contrary, it was freedom from white, heteronormative society, freedom that would allow Black communities to assume a collective identity and history in the spaces they began to flesh out for themselves. Art was the only method through which redefinition was possible.⁷

Under the radiant silver spotlights of the chorus stage, or in the hazy, dark rooms of the cabaret and buffet flat, queer Black women existed in states impossible to force into conventionality. And their art was the same: elusive, fluid, sprawling beyond limitation. But there was no erasure, no question; they were there.

The Political Erasure of Art

Unfortunately, such times of ecstasy came to an abrupt close. On April 8, 1925, the Wayward Minors bill was signed into law.⁸ That summer, in the heat, the tenements were empty. Women leaned against brick buildings, shedding layers as the sun climbed higher. They mingled with the men, making slow, slow conversation in the swelter. In the evening, they retired to their apartments, or another's, and surely there would be music.

Well, wherever there was music, there was gambling. And sex. And *waywardness*. And even if there wasn't, there certainly would be. At least, that was the logic when young Black women were arrested under the Wayward Minors bill.⁹ The bill made it so young people could be penalized if they were deemed willfully disobedient or immoral. Some were given probation.

⁷ Emmanuel, "The Role of Art..." p. 54

⁸ Shelly, "Wayward Minors Put Under..."

⁹ Ibid.

Others were sent to institutions, or ‘reformatories,’ supposedly focused on elevating the moral character of young women.¹⁰

The passage of such a bill that claimed to stop crime before it even happened set a precedent for a preemptive legal system, one which ignored the principle of ‘innocent until proven guilty,’ particularly in the cases of young Black women. One of these women was the future jazz legend Billie Holiday.

It is 1959. Before an eager crowd, Holiday stands, jewelry glittering, a grand piano vamping in the background. She and the stage are nothing short of grand. She announces the next song as the audience grows quiet: “Strange Fruit.” She takes a breath, her face melancholic. All the grandeur suddenly becomes quite intimate as she begins to sing. She sings a song of suffering. Of a long history of pain and despair.¹¹ To popularize a song that tells a story so punctuated with anguish and loss is itself a radical act. It is undeniably moving, and it brought to light the brutality of lynchings that Black Americans had long endured. It forced a wider, white audience to confront the reality of Black American life at a time when the Civil Rights Movement was taking shape.¹² It is possible, however, that the impact of “Strange Fruit” on America’s political landscape, as well as Holiday’s broader contributions to music, might never have been known.

Before her fame, Holiday was arrested. She was arrested for “fraternizing with a white man, jailed [...] for hooking, jailed [...] for being...”¹³ Holiday, like many other Black women of the early 1900s, was subject to a judicial process that sought to sweep her off the street and place her in prison simply for existing on her own terms. The law was not concerned with the truth. It

¹⁰ The New York Times, “New Law Signed on Delinquency...”

¹¹ Holiday, Reelin’ in the Years Archives, “‘Strange Fruit’ Live 1959”

¹² The Kennedy Center, “Billie Holiday + Strange Fruit”

¹³ Smith, “Crazy They Call Me”

was concerned with young Black women finding ways to exist outside the predetermined lives that white society consigned them to. It was concerned with young Black women.¹⁴

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What is a society that denies artistic voice, if not one that denies freedom as a whole? In 1962, President John F. Kennedy delivered a televised address on behalf of the National Cultural Center. In his speech, given in the middle of the Cold War, Kennedy described the arts as a means of transcending cultural or political differences and championing democracy. Kennedy believed America, as a democratic society, had a responsibility to encourage the arts, for “in our fulfillment of these responsibilities toward the arts lie our unique achievement as a free society.”¹⁵ According to the former President of the United States, the arts are instrumental in maintaining a free and democratic society. Why, then, were they consistently threatened and censored just a few decades earlier?

Beginning in the 1930s, state law required female performers to apply for a license to wear men’s clothing in their acts, and cross-dressing was labelled subversive. Queer Americans like Gladys Bentley were thrust into the sightlines of Senator Joseph McCarthy and censored by the House Un-American Activities Committee (HUAC).¹⁶ Icons like Bentley who made space for American arts and culture to thrive under the protection of queer communities—who were the backs upon which Kennedy’s free society was constructed and were the artistic voices it celebrated—were deemed “Un-American.”

Their creativity, later so deeply valued by America, was so subversive it wasn’t considered American at all.

¹⁴ Hartman, “Wayward Lives, Beautiful Experiments” p. 225

¹⁵ Kennedy, “Remarks at a Closed-Circuit...”

¹⁶ Hartman, “Wayward Lives, Beautiful Experiments” p. 200

Attempts at legal prosecution over radical and rebellious sentiment, particularly within minority groups, were soon challenged in the Supreme Court in the 1937 case *Herndon v. Lowry*. Angelo Herndon, a Black coal miner from Georgia, was found in possession of Communist literature. One can imagine him in the coal mine, exhausted and radicalized by violence, labor, and exploitation, handing out pamphlets to other tired men, trying to advocate for an alternative way of living. But alternatives were not appreciated by the men who set the social order, and Herndon was charged with inciting insurrection.¹⁷

The Supreme Court found Herndon's arrest unconstitutional, and ruled that "The power of a State to abridge freedom of speech and of assembly is the exception, rather than the rule; and the penalizing even of utterances of a defined character must find its justification in a reasonable apprehension of danger to organized government."¹⁸ The ruling of *Herndon v. Lowry* was pivotal for the protection of many radical voices in the early 1900s. Still, it had its limitations. Who can decide what is a justifiable danger to organized government? One artist's protest art might be perceived as encouraging insurrection by another. Though legal protections in the 20th century expanded, they were still loose enough to be manipulated, vague in ways that kept Black, queer Americans at risk for legal persecution.

Threats to freedom stemming from art as a target for censorship and defunding continued well past the early 20th century. In September of 1990, Karen Finley, alongside several other performance artists, saw her application for a federal art grant from the National Endowment for the Arts (NEA) denied due to 'decency standards.' In response, the Center for Constitutional Rights filed a lawsuit, challenging the constitutionality of the NEA's decision under the First Amendment. In 1998, the Supreme Court found the NEA's decency standards to be

¹⁷ Zinn, "April 26, 1937: Supreme Court Strikes Down..."

¹⁸ The Supreme Court of the United States, "*Herndon v. Lowry*"

constitutional.¹⁹ The decision was reminiscent of the language found sixty years earlier in *Herndon v. Lowry*. Through *NEA v. Finley*, the NEA was given the right to evaluate all art initiatives with ‘respect for the values of the American public.’²⁰ In *Herndon v. Lowry*, distribution of radical material must be justified for having the potential to incite insurrection. Both decisions confront the possibility of art being considered offensive. Both decisions also rely on institutional discretion to keep offensive art from being too restricted or too widely distributed. But who’s to say who has the right judgement? Language, used in a way that is intentionally interpretive, leads to events that threaten artistic sovereignty— such as the current moment.

In the boardroom of any given cultural institution right now, they are scrambling. On the tail end of a beneficial few years for the arts comes the shock:

In a new FY26 appropriations bill proposal for the interior, environment, and related agencies released today, the House Appropriations Interior Subcommittee recommended 35 percent cuts to the National Endowment for the Arts (NEA) and the National Endowment for the Humanities (NEH) budget, and a 17.2 percent reduction in the Kennedy Center’s budget ... Key takeaways from the proposal include a section on “supporting the Trump administration and mandate of the American people” that would prohibit the use of funds to “promote or advance critical race theory” or to support “diversity, equity, and inclusion training or implementation [DEI].”²¹

Why? The truth is that the cuts to NEA funding are not truly about DEI. They are about reducing funding to underserved communities in order to promote the United States’ 250th anniversary, despite some of these being the very same communities that uplifted American arts and culture in the first place.²²

Now, the question returns of what the erasure of the arts means for democracy itself. When the arts are put on hold to promote nationalism, and divert attention from a sizable,

¹⁹ Center for Constitutional Rights, “NEA v. Finley”

²⁰ Ibid.

²¹ American Theatre Editors, “House Committee Proposes More Cuts...”

²² Blair, ““Chilling effect”: Arts organizations...”

underrepresented portion of said nation, is the definition of democracy adequately fulfilled? The goal of redirecting NEA funding is to celebrate the anniversary of a nation that so firmly claims to emphasize civic engagement and freedom. Yet, in doing so, equal representation, autonomy, and power have been seized from the communities that need it most.

Art as Civic Action

In the wake of the federal funding cuts to marginalized communities, some solace can be found in the fact that art has always found a way to thrive, especially when communities are disempowered. When the personal voice struggles to be heard, art amplifies it to the public level.

On a freezing January afternoon, protestors gathered at Foley Square in New York City in 2026 to protest the killings of Alex Pretti and Renée Good by Immigrations and Customs Enforcement agents. The crunching of snow under their shoes was drowned out by rhythmic chants, accompanied by tambourine and other percussion. Students and workers alike united to give visibility to the immigrant communities across the U.S. who had been deported, threatened, or killed by ICE. In the air, signs with slogans and artwork formed something between a museum and a sea, the white and brown posterboard shimmering in the winter sun.²³ Sketches scrawled on posters create a visual, while the chants of the crowd create an audible message. Music and art in protest doesn't only stop at marches.

In fact, the arts have long been crucial to activism, “from the organization of demonstrations to the display of guerilla art.” Art is accessible. It is universal. But most importantly, it can be very cheap.²⁴ When an activist movement demands prominence in order to achieve its goals, the arts are often the best method to do so. The visual arts, in particular, have proven to adapt incredibly well to new technologies and environments. Digital pamphlets and

²³ WABC, “Thousands of protesters gather...”

²⁴ Dunn, et al., “Art, Protest, and Public Space”

posters, for example, can be disseminated with ease. It is also not uncommon to find flyers advocating for a protest or political policy in public spaces like walls, scaffolding, and lampposts. Beyond the aesthetic value of the arts to protest, however, is their unique quality to appeal to a viewer's emotions.

Against a dark grey sky, a man stands, arms in the air, before a squad of guns. His face reads as nothing but pure terror and suffering as he faces the reality and violence of war. Francisco Goya's "The Third of May 1808"²⁵ is a brutal depiction of war, one which is believed by some to be the first notable anti-war painting. The execution is "terrifying."²⁶ Art's activist qualities are not always intentional. Often, it is the intense rhetoric that incites social outrage. Susan Sontag found that "the practice of representing atrocious suffering as something to be deplored, and, if possible, stopped, enters the history of images with a specific subject: the sufferings endured by a civilian population at the hands of a victorious army on the rampage."²⁷ The image, the painting, the song; The arts are powerful assets in galvanizing efforts towards progress.

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Back in the Harlem apartment, back in the obscured luxury of the buffet flat, a pair dances. Two women, embracing one another, but it doesn't matter here. Another woman has all the attention, singing the blues, crying out in a melody how things have to change. How "the judge found me guilty / The clerk, he wrote it down..."²⁸

Listen, for there's a woman singing what she longs for. And the crowd is cheering—they want it, too. Even here, in the private space, young Black women set their voices out to be heard,

²⁵ Goya, "The Third of May 1808"

²⁶ Arn, "How Goya's 'Third of May'..."

²⁷ Sontag, "Regarding the Pain of Others" p. 3

²⁸ Rainey, "Chain Gang Blues"

shouted their desires out into the streets, asking their government, this democracy, to give power to their dreams.

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“Art can be used as a tool to articulate the public’s political wants and needs, therefore, being an agent in a democratic government ... On a larger scale, art tests the American democracy on the national and international arena. Artists can use the visual medium to send a message to the government and the government has the option to respond.”²⁹ The arts wish for conversation.

Time and again, communities stifled by censorship, legal persecution, and institutional discrimination return to prominence through song, literature, visual art, and performance. They use the arts to make demands, to elevate their communities to a level at which some semblance of true democracy can be ascertained. Artistic communities become safe havens for exploration and protection of queerness. From modern New York to the Harlem Renaissance, the arts remain the main method through which disenfranchised groups seize political agency.

If democracy requires equal power for all people, the arts have never ceased to fight for it. They will not allow an ending defined by repression. They champion progress. They allow opportunity for music in the midst of silence. They allow a universal fight for a history, one with enough room for an endlessly discoverable past alongside an infinite future.

²⁹ Hefka, “The Role of Artistic...” p. 2-3

Notes

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